



CHAPTER xxx.

An Act to confer further powers upon the Whitby Gas Company. A.D. 1904.
[24th June 1904.]

WHEREAS by the Whitby Gas Act 1871 (herein-after called "the Act of 1871") the Whitby Gas Company Limited was dissolved and the proprietors therein were reincorporated into a Company (herein-after called "the Company") and authorised to manufacture and supply gas in the townships of Whitby Ruswarp and Hawsker-cum-Stainsacre in the North Riding of Yorkshire : 34 & 35 Vict.
c. cxxxvi.

And whereas the existing capital of the Company consists of eighteen hundred original ordinary shares of ten pounds each entitled to dividend at the rate of ten per centum per annum and fifteen hundred additional ordinary shares of ten pounds each entitled to a dividend of seven per centum per annum and the whole of such capital has been issued and is fully paid up :

And whereas the Company are by the Act of 1871 authorised to borrow a sum not exceeding eight thousand two hundred and fifty pounds and the Company have raised the whole of that sum by the creation and issue of debenture stock :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act and for the general purposes of their undertaking :

And whereas the Company now supply gas at a fixed maximum price and it is expedient that provision should be made as in this Act contained whereby the rate of dividend payable by the Company upon their ordinary capital shall be regulated according to the price charged for gas upon the system known as the sliding scale of price and dividend :

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And whereas the demand for gas within the limits of supply of the Company is increasing and it is expedient that the Company should be authorised to erect additional works for the manufacture and storage of gas and the manufacture and conversion of residual products upon the lands described in the schedule to this Act which lands belong or are reputed to belong to the Company :

And whereas it is expedient that further powers should be conferred upon the Company as in this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Whitby Gas Act 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely :—

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement) :

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" :

And the provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ;

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The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall extend and apply to the Company and to the additional capital which they are by this Act authorised to raise.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

4. The Company may upon the lands described in the schedule to this Act maintain and continue the existing gasworks thereon and may erect and maintain new or altered gasworks retort houses retorts gasholders purifiers mains pipes machinery and other apparatus works and conveniences for the manufacture conversion and supply of gas coke tar pitch ammoniacal liquor and other residual products obtained in or resulting from the manufacture of gas and on those lands may make store and convert gas and any residual products and any other substances products or matters producible therefrom or used in relation to the production or manufacture thereof. Powers as to construction and maintenance of gasworks &c. on lands described in schedule.

5. The Company may raise additional capital not exceeding in the whole twenty-five thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty-five thousand pounds. Power to Company to raise additional capital.

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New shares
or stock to
be offered by
auction or
tender.

6. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that notice of the amount of the reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. Provided also that no priority shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

Purchase
money of
capital sold
to be paid
within three
months.

7. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be
given as to
sale of shares
or stock.

8. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of the urban district council of Whitby to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Shares or
stock not
sold may be

9.—(1) When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and

not sold the same may (if the directors of the Company think fit) be offered at the reserve price put upon the same for the purpose of sale by auction or tender to the holders of preference or ordinary shares or stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

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offered to
shareholders
employees or
consumers.

(2) Any shares or stock not so offered and any shares or stock so offered and not accepted in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any shares or stock not then sold may be again offered to the holders of preference or ordinary shares or stock or to such employees or consumers at the reserve price put upon the same at such second auction or tender and so from time to time until the whole of such shares or stock is sold.

10. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage or in redeeming debenture stock so far as such stock is redeemable by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Application
of premium
arising on
issue of
shares or
stock.

11. The additional capital by this Act authorised shall form part of the general capital of the Company and the proprietors of any shares or stock to be issued under the authority of this Act shall subject to the provisions of this Act be entitled to a dividend with the other holders of shares or stock.

Incidents
of additional
capital.

12. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restriction
as to votes in
respect of
preferential
shares or
stock.

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Power to
borrow.

13. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Repeal of
provisions
of Act of
1871 with
respect to
appointment
of receiver.

14. Section 33 (Arrears may be enforced by appointment of receiver) of the Act of 1871 is hereby repealed but without prejudice to any appointment heretofore made thereunder or to the continuance of any proceedings which may have been commenced under such provision prior to the passing of this Act.

For appoint-
ment of re-
ceiver.

15. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture
stock.

16. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this Act or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

17. The provisions of this Act with respect to disposing of stock by auction or tender shall apply *mutatis mutandis* not only to the additional ordinary shares or stock of the Company but also to any debenture stock to be created by the Company under this Act.

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Debenture stock to be sold by auction or tender.

18. All money raised or to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Priority of mortgages and debenture stock over other debts.

19. If any money is payable to a shareholder or stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in case of persons not *sui juris*.

20. All money raised under this Act by the Company whether by shares stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Application of money.

21. If the clear profits of the undertaking of the Company in any one year amount to a larger sum than is sufficient to pay the interest on the debenture stock the dividend on the preference shares or stock (if any) and the authorised rate of dividend on the ordinary shares or stock the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the amount of the capital for the time being expended by the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth part of the capital as aforesaid which sum shall form an insurance fund under the provisions of this Act to meet any extraordinary claim demand or charge which may at any time arise against or

Insurance fund.

A.D. 1904. fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time and so often as such reduction shall happen. Provided that when and so often as the said fund shall reach one twentieth part of the said capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount thereof.

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

22. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate of dividend by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other similar fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the authorised rate of dividend on the ordinary capital of the Company and save as in this section provided no sum shall in any year be carried by the Company to any reserve fund.

Renewal fund.

23.—(1) The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital of the Company including premiums to be called "the renewal fund" for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes.

(2) Such fund shall be invested in any securities in which trustees are for the time being authorised by law to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company. A.D. 1904.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner herein-before provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may from time to time be had to such fund for the purposes aforesaid notwithstanding that the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid.

24. On and as from the first day of January one thousand nine hundred and five section 27 (Limit of dividend on new capital) and section 66 (Limiting price of gas) of the Act of 1871 shall be and the same are hereby repealed. Repeal of sections 27 and 66 of Act of 1871.

25. Notwithstanding anything contained in the Act of 1871 as from the first day of January one thousand nine hundred and five the profits of the Company to be divided among the shareholders or stockholders in any year shall except as by this Act provided not exceed the following rates (that is to say) On the original ordinary capital authorised by the Act of 1871 the rate of ten pounds in respect of every one hundred pounds of such capital and on the additional ordinary capital authorised by the Act of 1871 and this Act the rate of seven pounds in respect of every one hundred pounds of such capital (which rates are herein-after respectively called "the standard rate of dividend") and on the preference capital (if any) the rate of six pounds in respect of every one hundred pounds. Limitation of profits.

26. On and after the first day of January one thousand nine hundred and five the standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter (other than a prepayment meter) shall be four shillings and sixpence per one thousand cubic feet : Sliding scale.

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Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary capital as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

Provided that if in any year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Charges for
gas supplied
by means of
prepayment
meters.

27.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas

supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of ten pence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connexion with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the provisions of the Act of 1871 and of this Act applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

28. In case in any year the funds of the Company applicable to the payment of dividend on the ordinary capital shall be insufficient to pay the full amount of dividend at the authorised rate on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends on different classes of stock or shares to be paid proportionately.

29. If the clear profits of the undertaking of the Company applicable to the payment of dividend on the ordinary capital amount in any year to a larger sum than is sufficient to pay the authorised rate of dividend on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund or the reserve fund shall be carried to the credit of the divisible profits of the undertaking for the next following year.

Application of excess of profits over authorised rate of dividend.

30. The directors may declare and pay a half-yearly or interim dividend out of the profits of the Company for any half-year ending on the thirtieth day of June without the sanction or direction of a general meeting of shareholders but no such half-yearly dividend shall exceed one half of the standard rate of dividend.

Declaration by directors of half-yearly dividends.

31. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days notice shall be given by advertisement in

Closing of transfer books previous to declaring dividend.

A.D. 1904. a newspaper published in the urban district of Whitby and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Power to
purchase
lands by
agreement.

32. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to them any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act and the lands which the Company are authorised by the Act of 1871 to use for such purpose.

Dwelling-
houses for
persons in
Company's
employ.

33. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to or leased by the Company.

Power to
sell and lease
lands.

34. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit and notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

As to specifi-
cation of
internal
fittings and
construction
and placing
of pipes &c.
between
mains and
consumer's
premises.

35. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

(2) The Company may if they think fit make different specifications for different classes of premises having

regard to the probable maximum consumption of gas thereon at any one time : A.D. 1904.

- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid between the Company's main and the meter shall be placed as near as reasonably practicable to such main but within the outside wall of the building :
- (5) When any such pipes as aforesaid have been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

36. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be

Power to lay pipes in streets or roads not dedicated to public use.

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Power to lay down and utilise pipes for ancillary purposes.

37. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to require use of anti-fluctuators for gas engines.

38. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to supply gas fittings and fittings not to be subject to distress.

39.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines motors dynamos meters stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the same are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. A.D. 1904.

40. Twenty-four hours notice in writing shall be given to the Company by every consumer of gas supplied by the Company before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Company. Gas consumers to give notice to Company before removing.

41. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company. Notice of discontinuance.

42. If a person requiring a supply of gas from the Company for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

43. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of error in defective meters.

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No penalty
in case of
unavoidable
cause.

44. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Act of 1871 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company
may enter
into con-
tracts for
supply of
gas.

45.—(1) The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply :

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers.

Discounts.

46. The Company may if they think fit allow discounts or rebates not exceeding ten per centum to consumers of gas in consideration of payment of gas rents upon such days as the directors fix for the payment thereof by any such consumers and an additional amount by way of discount or rebate not exceeding fifteen per centum in respect of large consumption upon such scale or scales and subject to such conditions and regulations as the Company may prescribe Provided that such discounts shall be of equal amount under like circumstances

to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent. A.D. 1904.

47.—(1) If the urban district council of the urban district of Whitby (in this section called “the council”) shall introduce a Bill and bonâ fide promote the same in the next or then following session of Parliament to empower them to purchase the whole undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by council agents and witnesses if they think fit And if the council obtain an Act authorising such purchase and give three months notice in writing expiring either on the thirty-first day of December one thousand nine hundred and five or the thirtieth day of June one thousand nine hundred and six in the event of such Act being passed in the year one thousand nine hundred and five or on the respective corresponding days of the years one thousand nine hundred and six and one thousand nine hundred and seven in the event of such Act being passed in the year one thousand nine hundred and six of their intention to purchase the Company shall sell and transfer and the council shall purchase and acquire the whole undertaking property rights powers and privileges of the Company subject to all the existing mortgages obligations and liabilities of the undertaking and such sale and transfer shall take effect as from the date on which the purchase money shall be paid by the council to the Company and not sooner.

Provisions as to purchase of undertaking by urban district council of Whitby.

(2) Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the council and the expression “lands” shall mean the undertaking of the Company Provided that for the purpose of any such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement And in addition to the sum to be paid by the council to the Company under the foregoing

A.D. 1904. provisions of this section the council shall pay to the Company the costs and expenses incurred by them of and incident to the winding-up of the Company and compensation to any officers and servants in the regular employment of the Company for whom no regular office or employment on the same terms shall be found by the council in respect of any loss of office or diminution of salary or income the amount of such costs and expenses and compensation in default of agreement to be determined by arbitration as aforesaid. Provided that no officer or servant who has been in the employment of the Company for twenty years or upwards shall lose his right to compensation as aforesaid by reason of his declining to enter the service of the council.

Recovery of
demands not
exceeding
one hundred
pounds.

48. Proceedings commenced before the first day of January one thousand nine hundred and five for the recovery of any demand not exceeding fifty pounds and proceedings taken on or after that date for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or the Act of 1871 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Costs of Act.

49. All costs charges and expenses of and incident to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1904.

LANDS ON WHICH THE COMPANY MAY MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE GAS IN ADDITION TO THE LANDS ALREADY AUTHORISED TO BE USED BY THEM FOR THOSE PURPOSES.

Certain lands containing half an acre or thereabouts situate in the township of Ruswarp in the North Riding of the county of York upon and adjoining the north-eastern side of the Company's existing gasworks and bounded on or towards the north-east and north-west by property of the North Eastern Railway Company and on or towards the south-east by the River Esk.

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